

Patent timelines and cost expectations

- Patent search: 5-7 days
- Patent drafting: ~6 weeks
- Patent grant (India): ~2 years

But once filed, you receive a priority date that is enough to label your technology 'Patent pending' and block others filing after you.

systems, and telematics-based recommendations. For example, TVS Motors patented a method to sync vehicle data with wearables, thereby improving rider safety and maintenance accuracy.

However, India's Digital Personal Data Protection Act (DPDPA) has fundamentally reshaped the boundaries of permissible data use. The law allows data processing only for the specific purpose a user has consented to. Selling or sharing driving logs with unrelated third parties—such as sharing a rider's frequent-stop patterns with a cafe chain—is explicitly illegal.

To monetise connected-vehicle data responsibly, I align any technical strategy with strong IP protection and strict compliance with DPDPA requirements. My takeaway is clear: before attempting to monetise vehicle data, I prioritise a thorough compliance and IP audit.

Can analytics tech be patented? Software code cannot be patented in India. However, processes built on top of data analytics methods to make computation faster, more efficient, or more reliable are patentable. For instance, Nvidia holds more than 1900 process patents for chip-manufacturing methodologies.

The startup dilemma and global patent strategy

A recurring challenge in automotive innovation is avoiding the inadvertent creation of something that resembles existing patented technology. Ignorance of prior art offers no protection. When disputes arise, courts typically analyse

whether the two parties operate as direct competitors, whether the new implementation is substantially similar to the earlier one, how closely the original patent's claim set overlaps with the new invention, and whether any modifications introduced are meaningful or merely superficial.

Independent innovations can coexist in the market, but only when claim overlap is minimal and the applications or technical approaches differ substantially.

These challenges become more complex when a device is designed for multiple markets. Patent rights are limited to individual countries, so protecting my invention in one region does not automatically extend protection elsewhere. While registering globally is ideal, many companies adopt a practical strategy: they focus on their top revenue markets, seek unified protection across the European Union, and file in China, which is both a significant market and a frequent hotspot for product imitation. Strong international coverage also enhances common-law protection, giving companies additional tools to defend their technology even where they lack a direct patent.

Today's vehicles do not just move; they listen, learn, and respond. As mobility shifts from mechanical to digital, real competitive advantage lies in protecting the invisible processes, interactions, data flows, design logic, and algorithms that form the new mobility stack.

For me as an automotive innovator or designer, the message remains unambiguous: if I am contributing to the future of mobility, I must protect my innovations. **EFY**

The article is based on a session titled, 'Designing the Future of Mobility: IP Strategies for Automotive Tech and UX Innovations,' delivered by Ankita Sabharwal, Head of Data Privacy, Chadha & Chadha, at the EFY Expo held at the Auto Cluster Exhibition Center, Pune 2025. It has been transcribed and curated by Akanksha Sondhi Gaur, Senior Technology Journalist at EFY.

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Branding is what people say about you when you are not in the room.
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-Jeff Bezos

